

****February 5, 2024****

****Fine for Violation of GDPR****

The National Supervisory Authority has completed an investigation in January 2024 at a Homeowners' Association in Miercurea Ciuc and found that it violated the provisions of Article 5 paragraph (1) letters a), c) and paragraph (2), Article 6, Article 12 paragraphs (3) and (4) in relation to Article 83 paragraph (5) letter e) of Regulation (EU) 2016/679 (GDPR).

The operator was sanctioned with fines totaling 2,486.2 lei, equivalent to 500 EURO.

The investigation was initiated following a complaint alleging that the operator disclosed the data of a natural person by posting a notification on the WhatsApp group of the members of the Homeowners' Association, in which the complainant requested a series of information and documents related to the operation of the Association.

During the investigation, it was found that the operator illegally and excessively disclosed the complainant's data by posting on the WhatsApp group of the Association's members a notification sent by him to the Association (name, surname, and home address in Bucharest), contrary to Article 5 paragraph (1) letters a), c), paragraph (2) and Article 6 of the GDPR.

It was also found that the Homeowners' Association did not provide evidence regarding the communication of a response to the complainant's request in which she exercised her rights of access, deletion, and opposition, thus violating the provisions of Article 12 paragraphs (3) and (4) of the aforementioned regulation.

Additionally, it was found that the operator did not provide evidence regarding the implementation of the corrective measures ordered by the minutes of the finding/sanctioning drawn up previously by our institution, thus violating a provision of the National Supervisory Authority, which constitutes the contravention provided for by Article 83 paragraph (5) letter e) of the GDPR.

At the same time, the Homeowners' Association was also subjected to the following corrective measures:

- to send a written response to the complainant's request, to communicate the requested information based on the right of access and, respectively, the measures adopted following the exercise of the rights of deletion and opposition;
- to ensure compliance with the GDPR in the operations of processing personal data, so that the personal data of the data subjects, including the members of the association, are processed in strict compliance with the principles and rules of processing provided mainly by Articles 5 and 6 of the GDPR, in this sense it will also carry out appropriate training of the persons processing personal data under its authority and will provide adequate instructions to the authorized persons, according to Article 28 of the GDPR;
- to respond in writing to the complainant's request, to communicate the measures adopted following the exercise of the rights of deletion and opposition;
- to ensure compliance with the GDPR in the operations of processing personal data, by adopting the necessary organizational measures, including regarding the appropriate training of the designated staff for this purpose, so that the operator responds to requests through which data subjects exercise their rights, within the deadlines and according to the conditions provided by Articles 12-23 of the GDPR.

****Legal and Communication Directorate****

****N.S.A.P.D.C.P.****